MINUTES OF THE CLARE COUNTY BOARD OF COMMISSIONERS SPECIAL MEETING

Approved 8/17/25

225 W. Main St.
Harrison, Michigan 48625

~~Unapproved~~ minutes
August 4, 2025

Meeting was called to order at 9:30 a.m.

Pledge of Allegiance to the Flag of the United States of America

COMMISSIONERS PRESENT

District 1 Marlene Housler, District 2 Dale Majewski, District 3 Jacob Gross, District 5 David Hoefling, District 7 Gabe Ambrozaitis and District 8 George Gilmore

COMMISSIONERS ABSENT

District 4 Jeff Haskell, District 6 Jack Kleinhardt and District 9 Rick Fancon

OTHERS PRESENT

Clerk & Register of Deeds Lori Mott, Administrator Lori Phelps, Treasurer Jenny Beemer-Fritzinger and zoom participants

APPROVAL OF AGENDA

It was moved by Commissioner Majewski, seconded by Commissioner Ambrozaitis to approve the agenda, **motion carried**

GENERAL PUBLIC COMMENT

None

CLOSED SESSION

It was moved by Commissioner Ambrozaitis, seconded by Commissioner Majewski to go into closed session to discuss with our attorney trial and/or settlement strategy in the tax-foreclosure litigation including the pending lawsuit of Thomas Fox, et al v Saginaw County, et al (Case No. 1:19-cv-11887), pursuant to (MCL 15.268 (e), because discussion on the open record will have a detrimental financial effect on the litigation or settlement position of Clare County and also to discuss material exempt from disclosure under the attorney-client privilege, MCL 15.243(1)(g), pursuant to MCL 15.268(h), roll call vote revealed:

Yeas: (6) being Commissioners Ambrozaitis, Majewski, Gross, Hoefling, Housler and Gilmore
Nays: (0)
Absent: (3) being Commissioners Fancon, Kleinhardt and Haskell
Motion carried

Entered into closed session at 9:33 a.m.
Back in open session at 10:29 a.m.

SETTLEMENT AGREEMENT

It was moved by Commissioner Gross, seconded by Commissioner Housler to approve the proposed tax-foreclosure class action settlement agreement for surplus proceeds in the case of Thomas Fox, et al v Saginaw County, et al (Case No. 1:19-cv-11887) as discussed in closed session of August 4, 2025 and to also approve the inter-county administrative expense and cost-sharing agreement, roll call vote revealed:

Yeas: (6) being Commissioners Gross, Housler, Ambrozaitis, Majewski, Gilmore and Hoefling
Nays: (0)
Absent: (3) being Commissioners Fancon, Kleinhardt and Haskell
Motion carried

It was moved by Commissioner Ambrozaitis, seconded by Commissioner Housler to adjourn, **motion carried**.

Meeting Adjourned at 10:30 a.m.:

Lori Mott, Clerk
Clare County Board of Commissioners

George Gilmore, Chairman
Clare County Board of Commissioners